illustrations in such printing in any case shall not exceed $500. This authority may not be redelegated.

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Dated: December 22, 1959.

FRANKLIN FLOETE,
*Administrator of General Services.*

[F.R. Doc. 59-11043; Filed, Dec. 23, 1959; 11:50 a.m.]

# Title 43—PUBLIC LANDS: INTERIOR

## Chapter I—Bureau of Land Management, Department of the Interior

### APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2036]

### NEW MEXICO

### Partially Revoking Executive Orders No. 6143 of May 23, 1933, and No. 6276 of September 8, 1933

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Orders No. 6143 of May 23, 1933, and No. 6276 of September 8, 1933, which withdrew public lands in New Mexico to aid the State in making exchange selections as provided by the Act of June 15, 1926 (44 Stat. 746–748), are hereby revoked so far as they affect the following-described lands:

NEW MEXICO PRINCIPAL MERIDIAN

[1492175]

T. 21 S., R. 18 W.,
Sec. 24, S½S½NE¼, S½SE¼NW¼, SE¼, N½NE¼SW¼, SE¼NE¼SW¼, and E½SE¼SW¼.

[1500537]

T. 16 S., R. 19 W.,
Sec. 7, lot 3 and NE¼SW¼.
T. 16 S., R. 20 W.,
Sec. 12, SE¼.

The areas described aggregate 511.72 acres.

2. The lands in T. 21 S., R. 18 W., are located in Hidalgo County, seven miles northeast of Lordsburg, New Mexico. The topography is moderately rolling and undulating. The soils are deep sandy loams and sandy clay loams. Vegetation consists chiefly of tobosa and grama grasses and yucca. The lands in T. 16 S., Rs. 19 and 20 W., are located on the southern slopes of Applegate Mountain, approximately 15 miles west of Cliff, New Mexico. Topography is generally very rough and mountainous, with deeply entrenched sharp valleys between the ridges which form the southern slopes of Applegate Mountain. Soil coverage is very scant.

3. No applications for the lands will be allowed under the homestead, desert land, small tract, or any other nonmineral public land law, unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

4. The State of New Mexico has waived the preference right of application granted it by subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852).

5. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections and locations under the public land laws in accordance with the following:

a. Applications and selections under the nonmineral public land laws may be presented to the Manager named below, beginning on the date of this order. Such applications, selections and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing law, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications and selections under the nonmineral public land laws presented prior to 10:00 a.m. on January 23, 1960, will be considered as simultaneously filed at that hour. Rights under such applications and selections and offers filed after that hour will be governed by the time of filing.

6. The lands have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals. They will be open to location for nonmetalliferous minerals beginning at 10:00 a.m. on January 23, 1960, provided, however, that a classification of the lands or any of them for disposal under the Act of June 14, 1926 (44 Stat. 741; 43 U.S.C. 869), as amended, will segregate the lands as provided by the Act and the regulations in 43 CFR 254.6.

7. Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

ROGER ERNST,
*Assistant Secretary of the Interior.*

DECEMBER 18, 1959.

[F.R. Doc. 59-10971; Filed, Dec. 23, 1959; 8:50 a.m.]

# PROPOSED RULE MAKING

# DEPARTMENT OF AGRICULTURE

## Agricultural Research Service

## [ 7 CFR Part 301 ]

### SOYBEAN CYST NEMATODE

### Notice of Public Hearing on Extending Quarantine to State of Illinois

The Administrator of the Agricultural Research Service has information that the soybean cyst nematode (Heterodera glycines Ichinohe), which causes a dangerous disease of soybeans and certain other plants, and which has not heretofore been widely prevalent or distributed within or throughout the United States, but which previously has been found to exist in certain parts of the States of Arkansas, Kentucky, Mississippi, Missouri, North Carolina, Tennessee, and Virginia, has recently been discovered in certain parts of the State of Illinois.

Notice is hereby given that it is proposed under the authority of section 8 of the Plant Quarantine Act of 1912, as amended, and section 106 of the Federal Plant Pest Act (7 U.S.C. 161, 150ee), to quarantine the State of Illinois and to prohibit or restrict the movement from Illinois into or through any other State, Territory, or District of the United States of (a) soil, separately or with other things; (b) nursery stock and other plants with roots attached; (c) true bulbs, corms, rhizomes, and tubers; (d) root crops; (e) soybeans; (f) small grains; (g) ear corn; (h) hay, straw, fodder and plant litter of any kind; (i) seed cotton; (j) used farm tools, implements, and harvesting machinery; (k) used construction and maintenance equipment; (l) used crates, boxes, burlap bags, and cotton picking sacks, and other used farm products containers; and (m) other farm products and farm equipment, processing machinery, trucks, wagons, railway cars, aircraft, boats, and other means of conveyance, and unlimited by the foregoing, any other products and articles of any character whatsoever, not covered by (a) through (l) above, when it is determined in accordance with regulations supplemental to 7 CFR 301.79 that they present a hazard of spread of soybean cyst nematodes.

The State of Illinois has already imposed an intrastate quarantine on the movement of the above-designated articles from localized areas actually infested by the soybean cyst nematode. It is therefore proposed to limit the federally regulated localities to these same areas.

A public hearing will be held before a representative of the Agricultural Research Service in the Auditorium, Illinois